

- Finally, the County argues—again, conclusorily—that there is a “serious risk” of confusion for the trier of fact if the cases are consolidated: “the jury could easily confuse the claims and arrive at inconsistent findings.” (Opposition, pp. 6:17-7:2.) This argument is unexplained and appears to sell short the abilities of both trial counsel and Santa Clara County jurors. The court is confident that competent counsel should be able to explain the relationship between the parties and the basis for each of their claims in a straightforward and comprehensible manner. Contrary to the County’s counterintuitive claim, the court finds that the risk of “inconsistent findings” is vastly greater if the cases are tried separately rather than together.

For the foregoing reasons, the court GRANTS the motion and orders Case Nos. 21CV376991, 22CV393704, 22CV396635, 22CV403492, and 23CV412765 consolidated for all purposes.

Case No. 21CV376991 will be the lead case.

- oo0oo -